PLOTART

Gallery Artist Agreement

Identifier PA-GAA-2026-11 · Text of 13 November 2026

1. Parties, documents and acceptance

1.1 This agreement is between Colin MacAulay (registered as Colin Macaulay), an individual trading as PlotNua under Business Name Registration No. 794392, who operates PlotArt as an initiative of PlotNua ("**PlotArt**"), and the artist who accepts it in PlotArt Studio (the "**Artist**"). PlotArt's business address is shown on the Legal information page at plotnua.ie/terms.html. PlotArt's contact email is hello@plotnua.ie.

1.2 This agreement includes the PlotArt Gallery Publication and Image Licence, identifier PA-GPIL-2026-11 (the "**Licence**"). If this agreement and the Licence differ, the term more favourable to the Artist applies, except as clause 18.3 explains for commission records.

1.3 The Artist accepts this agreement and the Licence in PlotArt Studio by ticking the acceptance statement shown with this identified version. The agreement takes effect when PlotArt Studio records that acceptance. The Artist can download the exact version accepted at any time.

1.4 For each acceptance PlotArt records: the agreement and Licence identifiers; a digital fingerprint of the exact text accepted; the date and time; the Studio account and email address used; the Artist's professional name and, if the Artist chooses to give it, the Artist's legal name; and the method of acceptance.

2. The gallery

2.1 PlotArt is an independently curated online gallery of contemporary Irish art. The Artist has been selected by PlotArt and receives a dedicated online gallery and biography page in the PlotArt **Artists' Gallery**, the online gallery the Licence calls the Virtual Gallery. PlotArt sets the order in which galleries appear by hand, for curatorial reasons. The order is not influenced by any fee, payment, commission rate or individual variation.

2.2 The Artist may start with one artwork and add more over time. PlotArt may ask the Artist to keep the gallery to a reasonable size, or may decline a particular work, for reasonable technical or curatorial reasons, and will explain why. PlotArt will not remove published artworks to apply a limit without the Artist's agreement.

2.3 **Founding Artists.** This agreement is for artists who join PlotArt under its standard commission-based terms. It does not apply to an artist who holds the PlotArt Founding Artist Agreement (PA-FAA-2026-11) unless that artist separately and expressly accepts it, as clause 6.4 of that agreement requires. Nothing in this agreement changes a Founding Artist's agreement, founding year, the commission-free status of Founding Enquiries, or any notice that agreement requires.

2.4 Homepage features, promotional placement and other opportunities are at PlotArt's discretion and are not guaranteed.

3. No fees

3.1 For as long as this agreement applies to the Artist, PlotArt charges the Artist no upfront, joining, membership, subscription or listing fee for the Artist's gallery.

3.2 The only charge under this agreement is PlotArt's commission on Qualifying Sales (clause 5). PlotArt does not ask for payment-card or bank details to join, remain or leave.

3.3 PlotArt may offer different commercial arrangements to other artists, or propose a new version of this agreement under clause 20. A new version, or any fee, applies to the Artist only if the Artist expressly accepts it. Until then this agreement, including clause 3.1, continues to apply.

3.4 PlotArt may offer optional additional services separately, on their own terms. The Artist's gallery, its position and the enquiries PlotArt introduces never depend on taking one up.

4. Enquiries, sales and no exclusivity

4.1 PlotArt displays the Artist's artwork and introduces potential collectors to the Artist, or to the Artist's authorised representative, through PlotArt's enquiry service or by email.

4.2 **Collectors pay the Artist directly.** PlotArt is not the seller. It does not collect collector payments, take ownership or possession of artworks, or arrange shipping, insurance or handling. The Artist sets or confirms the price, contracts with the collector, collects payment, arranges delivery, and handles applicable consumer rights, returns, tax and other obligations of the sale.

4.3 **Shipping, insurance and handling** are arranged and paid between the Artist and the collector. Amounts the collector pays for them are not part of the Commission Base (clause 5.6).

4.4 **No exclusivity.** The Artist may sell their work anywhere, show with other galleries and be represented by others. PlotArt asks for no exclusivity of any kind.

4.5 PlotArt does not guarantee enquiries or sales.

5. Commission

5.1 **Rate.** PlotArt's commission on a Qualifying Sale is 15% of the Commission Base, less any PlotArt-Funded Discount (clause 6) (the "**Full Commission**"). The Artist keeps at least 85% of the Commission Base.

5.2 **VAT.** The 15% commission includes any VAT that applies to it. The Artist pays no more than 15% of the Commission Base in total. If PlotArt is registered for VAT, its invoice shows the VAT included within the 15%.

5.3 **Qualifying Introduction.** A Qualifying Introduction is a collector introduced to the Artist by PlotArt on or after the date this agreement takes effect, by any of these routes:

- (a) an enquiry sent through PlotArt's enquiry service, which carries a PlotArt reference;
- (b) an enquiry PlotArt passes to the Artist by email and records with a PlotArt reference; or
- (c) a collector who contacts the Artist directly and tells the Artist, before the sale is agreed, that they found the Artist through PlotArt (a "**Direct Approach**").

A collector the Artist already knew before that date is not a Qualifying Introduction (clause 7).

5.4 **Introduction Date.** The Introduction Date is the date PlotArt introduced the collector, as shown by its reference, or, for a Direct Approach, the date the collector told the Artist they found the Artist through PlotArt. If PlotArt introduces the same collector again, a new Introduction Date applies only if the earlier Attribution Period has ended; a further enquiry during a running period does not extend it.

5.5 **Qualifying Sale and the Attribution Period.** A Qualifying Sale is a sale of any Original Artwork by the Artist, whether or not it is shown on PlotArt, to a collector from a Qualifying Introduction (or to someone buying on that collector's behalf) where either:

- (a) the sale is agreed within **24 months** of the Introduction Date, a period that ends at the end of the day before the second anniversary of the Introduction Date, Irish time (the "**Attribution Period**"); or
- (b) the sale is agreed after the Attribution Period but results from **Documented Negotiations** that began within it.

Documented Negotiations are written exchanges between the Artist (or the Artist's representative) and the collector about the purchase of a particular, identified artwork. Under (b), only the sale of that artwork, resulting from those negotiations, is a Qualifying Sale. Any other later purchase by the same collector is not.

Original Artwork means an original work made by the Artist, together with any frame or mount sold with it, and a signed, limited-edition fine-art print of the Artist's work. It does not include open-edition reproductions or merchandise (for example posters, cards or products bearing images of the Artist's work).

5.6 **Commission Base.** The Commission Base is the price agreed between the Artist and the collector for the artwork itself, before any PlotArt-Funded Discount. It includes any frame or mount sold with the artwork. It excludes shipping, insurance, handling, installation and any VAT the Artist charges on the sale. For a sale through a representing gallery or agent, the Commission Base is set by clause 12.2.

5.7 **No commission** is payable on:

- (a) an Independent Sale (clause 7);
- (b) a sale that is not a Qualifying Sale under clause 5.5, including any sale agreed after the Attribution Period that does not result from Documented Negotiations begun within it;
- (c) a sale that is cancelled, or fully refunded, before or after payment (clause 9);
- (d) an enquiry, viewing or conversation that does not result in a completed sale; or
- (e) newly commissioned artwork, including a commission agreed after a collector uses the "Enquire about a commission" option on the Artist's gallery, unless PlotArt and the Artist have separately agreed commission terms for it in writing.

Newly commissioned artwork is a work the collector asks the Artist to create, to the collector's request (for example its subject, size or setting), that did not exist and was not in progress when the commission was agreed. A work the Artist made independently, including one finished after the Introduction Date, is not newly commissioned, and minor changes to an existing work (such as reframing) do not make it so. If a collector introduced through the "Enquire about a commission" option buys an existing work, that sale is treated like any other sale.

5.8 Commission is due only on a **completed** sale: when the Artist has received payment for the artwork, or an instalment of it (clause 10).

6. Optional collector discount funded by PlotArt

6.1 PlotArt may, at its discretion, offer a particular collector a discount of up to **5% of the Commission Base** (a "**PlotArt-Funded Discount**"), but **only if the Artist agrees** to that discount for that sale, in writing (including by email or in PlotArt Studio), before it is

offered. PlotArt decides whether to propose a discount; the Artist decides whether to agree.

6.2 A PlotArt-Funded Discount is paid for entirely out of PlotArt's commission. The collector pays the Artist the Commission Base less the discount, and PlotArt's commission is reduced by the same amount, so the Artist still keeps 85% of the Commission Base.

6.3 Example (illustration only). Commission Base €1,000.

- **No discount:** the collector pays the Artist €1,000. PlotArt invoices €150. The Artist keeps €850.
- **With a 5% PlotArt-Funded Discount:** the collector pays the Artist €950. PlotArt invoices €100. The Artist keeps €850.

6.4 The Artist is not obliged to accept a PlotArt-Funded Discount, and refusing one never affects the Artist's gallery or the introductions PlotArt makes. PlotArt does not advertise PlotArt-Funded Discounts publicly; they are offered only to individual collectors.

6.5 No PlotArt-Funded Discount can be offered on a sale that carries no commission, or on a sale through a representing gallery or agent (clause 12.2).

7. Independent sales

7.1 An **Independent Sale** is a sale to a collector who did not come from a Qualifying Introduction. That includes a collector who:

- (a) bought from, commissioned, or was in documented contact with the Artist before the Introduction Date, other than through an earlier Qualifying Introduction;
- (b) found the Artist through the Artist's own channels, another gallery, an exhibition or any other source, without a PlotArt introduction; or
- (c) is otherwise shown, on reasonable evidence, to have reached the Artist independently.

7.2 If PlotArt and the Artist disagree about whether a sale is independent, the Artist may give PlotArt reasonable evidence (for example earlier correspondence or a previous sale record). Both will act in good faith. If, once reasonable evidence has been considered, the origin of the collector remains genuinely uncertain, the sale is treated as an Independent Sale.

8. Sale reporting, invoices and payment

8.1 **Reporting.** The Artist will report each Qualifying Sale to PlotArt within **14 days** of receiving payment, in PlotArt Studio (or by email to hello@plotnua.ie until Studio offers this). The report gives:

- the PlotArt reference, or, for a Direct Approach, the date the collector mentioned PlotArt;
- the artwork;
- the date the sale was agreed (and, if clause 5.5(b) applies, the date the Documented Negotiations began);
- the amount the collector was due to pay for the artwork, and any PlotArt-Funded Discount; and
- whether further instalments are due.

It includes no collector contact details.

8.2 **Direct Approaches.** The Artist reports a sale to a collector who told the Artist, before the sale was agreed, that they found the Artist through PlotArt. The Artist is not required to ask collectors how they found the Artist, or to investigate the source of any enquiry.

8.3 **Invoices.** PlotArt issues an invoice for its commission after the report, normally monthly. Each invoice identifies the sale by its PlotArt reference (or date of Direct Approach) and artwork, and shows how the commission was calculated.

8.4 **Payment.** The Artist pays each invoice by bank transfer within **30 days** of the invoice date. PlotArt charges no fees or interest for late payment beyond any that the law itself provides. Reminders, suspension and ending for unpaid commission are covered in clauses 17.3 and 17.4.

8.5 **Currency.** Commission is calculated and invoiced in euro. A sale in another currency is converted at the European Central Bank reference rate on the date the Artist received payment.

8.6 **Corrections.** If either party finds an error in a report or invoice, it tells the other promptly. An overpayment is refunded, and an underpayment is invoiced, within 30 days. PlotArt keeps the records of introductions, reports and invoices (clause 18.3); the Artist is not required to keep any record for PlotArt beyond what it needs to make an accurate report.

9. Cancellations, refunds and returns

9.1 No commission is payable on a sale that is cancelled or fully refunded. If PlotArt has already been paid, it refunds the commission within 30 days of the Artist telling it, with reasonable evidence.

9.2 **Partial refunds.** If the collector receives a partial refund, the commission due is the Full Commission multiplied by the amount the Artist keeps for the artwork, divided by the amount the collector was due to pay for the artwork. PlotArt credits or refunds any difference within 30 days.

9.3 Handling a cancellation, return or refund is a matter between the Artist and the collector, under the law that applies to their sale.

10. Instalments

10.1 If the collector pays in instalments, each instalment carries the same share of the Full Commission as the instalment bears to the total the collector is due to pay for the artwork. Commission on each instalment is due once it is received, and each instalment is reported under clause 8.1.

10.2 If an instalment sale is later cancelled, commission is due only on the instalments the Artist keeps, calculated under clause 10.1.

11. Artwork removed from PlotArt, and after this agreement ends

11.1 Withdrawing an artwork from the gallery does not affect commission on its sale if the sale is a Qualifying Sale under clause 5.5.

11.2 When this agreement ends, for any reason, commission remains payable on Qualifying Sales to collectors whose Introduction Date fell before the end, where the sale is agreed within the Attribution Period or under clause 5.5(b). No commission arises from collectors first introduced after the agreement ends.

12. Existing gallery representation and third-party sales

12.1 An Artist represented by another gallery or agent is responsible for obtaining any consent needed to show work on PlotArt, and for avoiding conflicts with any exclusivity they have agreed with others.

12.2 **Sales through a representing gallery or agent.** A "**representing gallery or agent**" is a gallery or agent that represents the Artist under an arrangement made independently of PlotArt and before the Introduction Date, and that takes a commission on the sale. If a collector from a Qualifying Introduction buys the Artist's work through a representing gallery or agent, and the sale is a Qualifying Sale under clause 5.5, the Commission Base is the amount the Artist receives from the gallery or agent for the artwork. PlotArt's commission is 15% of that amount, not 15% of the full price the collector pays.

Example (illustration only). The collector pays €1,000. The representing gallery keeps 40% (€400), and the Artist receives €600. PlotArt's commission is €90, and the Artist keeps €510.

12.3 The Artist reports such a sale under clause 8.1, giving the amount the Artist received. A statement from the Artist of the amount received is enough. PlotArt may ask for reasonable confirmation (such as the gallery's remittance) only if there is a genuine doubt. PlotArt does not need to see the gallery's own agreement.

12.4 If the representing gallery or agent itself introduced the collector to the Artist's work before the Introduction Date, the sale is an Independent Sale.

12.5 A sale by another gallery to its own collector, without a Qualifying Introduction, is an Independent Sale.

13. Individual variations

13.1 PlotArt and the Artist may agree different commercial terms for the Artist, for example a different rate, a period without commission or a particular arrangement for certain works. Any such variation:

- (a) must be agreed in writing (email is sufficient) by both parties before it applies;
- (b) is recorded by PlotArt with the Artist's account; and
- (c) applies only for the period, sales or works it states. Everything else in this agreement continues to apply.

13.2 A variation does not need to be published, and is not offered to other artists by reason of being agreed with one.

14. Artwork, accuracy and permissions

14.1 The Artist confirms that they own, or are authorised to offer, each listed work, and have the rights needed to provide its images and accompanying material.

14.2 The Artist will supply accurate titles, medium, dimensions, year, price, framing and availability information, will promptly correct inaccuracies, and will mark a work as sold or withdrawn in PlotArt Studio, where the change takes effect straight away.

14.3 PlotArt welcomes original digital work and AI-assisted practice. The Artist will disclose any meaningful use of AI in making a work. Images generated entirely from prompts are not automatically eligible as original artist-created artwork; PlotArt decides their eligibility.

15. Copyright and image licence

15.1 Copyright, moral rights and ownership of the artworks, images and texts remain with the Artist or the respective rights holders. This agreement transfers no intellectual property to PlotArt.

15.2 PlotArt uses the Artist's images and information only as the Licence permits: non-exclusively and royalty-free, on PlotArt and PlotNua web pages. Any promotional use beyond those pages needs the Artist's separate permission for each use.

15.3 PlotArt will not sell or sublicense the Artist's images, make products from them, add them to stock libraries, or use them to train artificial-intelligence models.

16. PlotArt Studio and publication

16.1 The Artist manages the gallery through PlotArt Studio, signed in with a one-time code sent to the Artist's email address. Changes the Artist submits count as the Artist's approval.

16.2 PlotArt will not first publish the gallery until the Artist has submitted its preview in PlotArt Studio. Later changes are published as follows:

- **straight away:** availability (available, reserved, sold), withdrawing a work, the order of works, and whether the gallery shows that the Artist is open for commissions;
- **after a quick check by PlotArt:** prices and corrections to existing details;
- **after review by PlotArt:** new works, new or replacement photographs, the biography and the portrait.

16.3 PlotArt may ask the Artist to correct, or may decline, a change that does not meet this agreement, the Licence or the photography guide, and will say why.

16.4 Participation in the Mobile Gallery, the Living Gallery, Art for Hire or any physical display needs a separate written arrangement. Care, handling, insurance and transport are discussed for every placement.

17. Suspension and ending

17.1 **By the Artist.** The Artist may end this agreement at any time, in PlotArt Studio or by email. PlotArt removes the public gallery within 14 days.

17.2 **By PlotArt on notice.** PlotArt may end this agreement on at least 60 days' written notice, giving its reasons.

17.3 **Unpaid commission: suspension.** If an invoice remains unpaid 14 days after its due date, PlotArt will send a reminder. If it remains unpaid 30 days after the reminder, PlotArt may suspend new introductions and the public display of the Artist's gallery. PlotArt will first give at least 14 days' written notice stating the amount owed and the reason. The suspension ends as soon as payment is received.

17.4 **Unpaid commission: ending.** If commission remains materially unpaid after a suspension notice under clause 17.3, PlotArt may end this agreement for persistent non-payment. It does so only after giving a final written notice that:

- states the amount owed;
- offers the Artist at least 30 days to pay, or to agree a reasonable payment arrangement; and
- states that the agreement will end if neither happens.

17.5 **Breach and unlawful content.** PlotArt may end this agreement for another serious or repeated breach after giving the Artist a reasonable opportunity to put it right. It may promptly suspend or remove unlawful or materially infringing content, giving its reasons, unless the law prevents it.

17.6 **What continues after ending.** These survive the end of this agreement:

- commission obligations under clauses 5 and 8 to 12 for Qualifying Sales covered by clause 11.2;
- PlotArt's record-keeping under clause 18.3; and
- obligations already owed to collectors.

Neither party owes any fee for ending this agreement.

18. Information, records and communications

18.1 PlotArt processes artist, enquiry and sale-report information in accordance with its privacy notice at plotnua.ie/privacy.html.

18.2 Sale reports contain no collector contact details.

18.3 **Commission records.** PlotArt keeps acceptance records, sale reports, commission invoices and payment records for as long as this agreement lasts and for six years after it ends or, if later, six years after the last commission invoice or payment under it, then deletes them unless the law requires otherwise. These are records PlotArt needs to meet its legal and accounting obligations and to establish or defend legal claims, within clause 6.6 of the Licence. The 12-month deletion of account and gallery records in clause 6.5 of the Licence does not apply to them.

18.4 **Questions and complaints.** Questions or complaints about this agreement, commission or the gallery can be sent to hello@plotnua.ie. PlotArt will respond within 14 days.

18.5 Notices are given by email, to the address the Artist uses for PlotArt Studio and to hello@plotnua.ie.

19. Responsibility and governing law

19.1 Each party remains responsible for its own acts and obligations, including its own tax.

19.2 Nothing in this agreement excludes or limits any liability that cannot lawfully be excluded or limited, or affects statutory rights.

19.3 This agreement is governed by the law of Ireland, and the courts of Ireland have jurisdiction. This does not take away any protection the Artist has under mandatory law where the Artist lives.

20. Changes to this agreement

20.1 PlotArt may propose changes as a new, identified version in PlotArt Studio, giving at least 30 days' notice. A new version applies to the Artist only when the Artist expressly accepts it there.

20.2 No change may raise the commission rate, lengthen the Attribution Period, introduce a fee, or alter commission on introductions already made, without the Artist's express acceptance.

21. General

21.1 This agreement, the Licence and any written variation under clause 13 form the whole agreement between PlotArt and the Artist about the Artist’s gallery.

21.2 This agreement does not create a partnership, employment or agency. Neither party can bind the other.

21.3 PlotArt may transfer this agreement only to a business that takes over PlotArt, on the same terms, and will tell the Artist by email.

21.4 If any part of this agreement is found unenforceable, the rest continues to apply.

Acceptance in PlotArt Studio

The Artist accepts this agreement in PlotArt Studio by ticking this statement:

> *“I have read and accept the PlotArt Gallery Artist Agreement PA-GAA-2026-11, including the Gallery Publication and Image Licence PA-GPIL-2026-11.”*